

STATE OF NEW YORK

4713--A

Cal. No. 128

2025-2026 Regular Sessions

IN ASSEMBLY

February 4, 2025

Introduced by M. of A. SAYEGH, SEAWRIGHT, DeSTEFANO, SANTABARBARA, DURSO, SHIMSKY, GLICK, OTIS, REYES -- read once and referred to the Committee on Corporations, Authorities and Commissions -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public service law, the public authorities law and the general business law, in relation to requiring utility companies maintain a toll free number for reporting service outages

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public service law is amended by adding a new section 119-f to read as follows:

§ 119-f. Toll free number for service outages. 1. Any gas corporation, electric corporation, gas and electric corporation, water corporation, steam corporation or a municipality rendering equivalent utility services is required to establish, provide and maintain a toll free phone number for consumers of such utility to call for reporting service outages. Such toll free number shall:

a. be attended twenty-four hours a day, seven days a week;

b. have the capacity to adequately address a surge in phone call volume during an emergency situation or extreme weather conditions;

c. be posted clearly and conspicuously on the homepage of the utility company's website; and

d. be posted clearly and conspicuously on the first page of each consumer's billing statement.

2. The failure to comply with the provisions in this section shall subject any gas corporation, electric corporation, gas and electric corporation, water corporation, steam corporation or a municipality rendering equivalent utility services to the penalties authorized in section twenty-five of this chapter.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 3. Any municipality shall have the opportunity to petition the commis-
2 sion for an exemption from the requirements of this section if such
3 municipality can show that such requirements are unduly burdensome.

4 § 2. The public authorities law is amended by adding a new section
5 1020-nn to read as follows:

6 § 1020-nn. Toll free number for service outages. 1. The service
7 provider shall be required to establish, provide and maintain a toll
8 free phone number for consumers of service provided by the service
9 provider to call for reporting service outages. Such toll free number
10 shall:

11 (a) be attended twenty-four hours a day, seven days a week;

12 (b) have the capacity to adequately address a surge in phone call
13 volume during an emergency situation or extreme weather conditions;

14 (c) be posted clearly and conspicuously on the homepage of the author-
15 ity's website; and

16 (d) be posted clearly and conspicuously on the first page of each
17 consumer's billing statement.

18 2. The failure to comply with the provisions of this section shall
19 subject the service provider to the penalties authorized in section
20 twenty-five of the public service law.

21 § 3. The general business law is amended by adding a new section
22 399-yyyyy to read as follows:

23 § 399-yyyyy. Toll free number for cable television and internet
24 service outages. 1. Any cable television or internet service provider
25 rendering equivalent utility services is required to establish, provide
26 and maintain a toll free phone number for consumers of such utility to
27 call for reporting service outages. Such toll free number shall:

28 (a) be attended twenty-four hours a day, seven days a week;

29 (b) have the capacity to adequately address a surge in phone call
30 volume during an emergency situation or extreme weather conditions;

31 (c) be posted clearly and conspicuously on the homepage of the cable
32 television or internet service provider's website; and

33 (d) be posted clearly and conspicuously on the first page of each
34 consumer's billing statement.

35 2. The failure to comply with the provisions in this section shall
36 subject any cable television or internet service provider rendering
37 equivalent utility services to the penalties authorized in section twen-
38 ty-five of the public service law.

39 § 4. This act shall take effect on the ninetieth day after it shall
40 have become a law.